

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: _____

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ERIC ACHEAMPONG,

Date Purchased: _____

Plaintiff,

SUMMONS

-against-

The basis of venue is:

CITY OF NEW YORK, P.O. THOMAS MATERA and
P.O. ANTHONY D. MARTINEZ

Place of Occurrence

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
July 10, 2022

Yours, etc.
ROTH & ROTH LLP



By: David A. Roth
Attorneys for Plaintiff
ERIC ACHEAMPONG
192 Lexington Avenue, Suite 802
New York, NY 10016
(212) 425-1020
File No.: 6247

DEFENDANTS ADDRESSES:

CITY OF NEW YORK
c/o CORPORATION COUNSEL
100 Church Street
New York, NY 10007

P.O. ANTHONY D. MARTINEZ
THOMAS MATERA
c/o NYPD Traffic Control Division
138 West 30th Street
New York, NY 10001

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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ERIC ACHEAMPONG,

Index No.:

COMPLAINT

Plaintiff,

-against-

**CITY OF NEW YORK, and P.O. THOMAS MATERA and
P.O. ANTHONY D. MARTINEZ,**

Defendants.

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**Plaintiff, appearing by his attorneys, Roth & Roth LLP, hereby alleges
against Defendants as follows:**

I. Preliminary Statement

- 1. On July 11, 2019, Defendants falsely arrested Plaintiff and used excessive force against him when they handcuffed and arrested him.**
- 2. Specifically, Plaintiff informed the Defendant police officers that he had just had shoulder surgery and requested that the officers handcuff him in the front. The officers ignored his request and rear-handcuffed Plaintiff, causing him severe pain and serious injuries and exacerbated and additional injuries to his shoulder due to a collision with another New York City owned vehicle that occurred while he was being transported after being arrested.**
- 3. Plaintiff brings this civil rights action for compensatory and punitive damages to redress the deprivation, under color of state law, of rights secured to him under the First, Fourth and Fourteenth Amendments of the United States Constitution.**

II. Jurisdiction

4. Jurisdiction is conferred upon this Court by 28 U.S.C. §1343, which provides for original jurisdiction over all actions brought pursuant to 42 U.S.C. §1983, by 28 U.S.C. §1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States.

III. Parties and Conditions Precedent

5. Plaintiff Eric Acheampong resides in the County of Bronx, City and State of New York.

6. The CITY maintains the New York Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

7. Defendants THOMAS MATERA (“MATERA”) and ANTHONY D. MARTINEZ (Tax No. 921960) (“MARTINEZ”) (collectively “Defendants”), were at all times relevant to this complaint, duly sworn police officers of the NYPD, and were acting under the supervision of the NYPD and according to their official duties. Plaintiff asserts his claims against MATERA and MARTINEZ in both their official and individual capacities.

8. At all times relevant herein, the Defendants were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

9. Each and all of the acts of the Defendants alleged herein were done by said Defendants while acting within the course and scope of their duties and functions as agents, servants, employees and officers of the CITY.

IV. Facts

10. On July 11, 2019, Plaintiff was working as a yellow taxi cab driver, when he stopped at the Park Central Hotel in Manhattan

11. When Plaintiff stopped to pick up a passenger, an NYPD traffic control agent approached Plaintiff and told him that he had to move.

12. Plaintiff informed the traffic agent that he was picking up a passenger and the passenger's bags were already loaded in the taxi.

13. The traffic agent eventually called 911 and requested that uniformed police officers come to arrest Plaintiff.

14. Shortly thereafter, defendants MATERA and MARTINEZ arrived and informed Plaintiff that he was under arrest.

15. Plaintiff complied with the officers and did not resist arrest in any way.

16. Plaintiff calmly informed defendants MATERA and MARTINEZ that he had previously injured his right shoulder and recently had right shoulder surgery in March 2019.

17. Because of his prior right shoulder surgery, Plaintiff requested that Defendants MATERA and MARTINEZ front handcuff him.

18. During transport of Plaintiff to the precinct the vehicle operated by MARTINEZ in which Plaintiff was a rear seated, rear handcuffed passenger was rear ended by an New York City Fire Department vehicle.

19. Pursuant to NYPD policy, NYPD officers are permitted to front handcuff arrestees who suffer from certain medical or physical conditions that make rear-handcuffing dangerous or harmful.

20. Defendants ignored Plaintiff's request and rear handcuffed him instead.

21. As a result of being rear handcuffed, Plaintiff's prior shoulder injury was aggravated and exacerbated.

22. As a result of being rear handcuffed, Plaintiff was also put in additional risk and in a dangerous position in the rear of the patrol car where, if there was a collision Plaintiff's arms being cuffed behind him would subject him to additional injuries due to his previous recent shoulder surgery.

23. As a result of being rear handcuffed, Plaintiff was further injured and had more severe injuries than he otherwise would have had if he had been front hand cuffed while being transported at the time of the collision.

V. CLAIMS FOR RELIEF

FIRST CLAIM FOR RELIEF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

24. All preceding and subsequent paragraphs are incorporated by reference.

25. MATERA and MARTINEZ used force against Plaintiff that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted them.

26. It was objectively unreasonable for PO MATERA and MARTINEZ to rear handcuff Plaintiff.

27. It was a violation of NYPD policy for MATERA and MARTINEZ to rear handcuff Plaintiff, because of Plaintiff's medical condition.

28. It was a violation of NYPD policy and good and accepted police practices for MATERA and MARTINEZ transport Plaintiff while being rear handcuffed, because of Plaintiff's medical condition.

29. At the time that MATERA and MARTINEZ rear handcuffed Plaintiff, he was not being violent or aggressive, and they knew Plaintiff posed no threat of physical harm to them.

30. It was objectively unreasonable for MATERA and MARTINEZ to rear handcuff Plaintiff, considering the totality of the circumstances.

31. Rear handcuffing Plaintiff was in contravention of, or inconsistent with, related NYPD policies and/or training.

32. As a result of the acts and omissions of MATERA and MARTINEZ, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to undergo a surgery to his right shoulder; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

33. The unlawful conduct of the individual defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

34. That as a result of the foregoing, Plaintiff, **ERIC ACHEAMPONG** was damaged on in an amount in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, **ERIC ACHEAMPONG**, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action alleged herein, as well as for full and fair punitive damages, plaintiff's reasonable attorney fees pursuant to 42 U.S.C. §1988, medical costs, lost earnings, together with the interest, costs and disbursements of this action

Dated: New York, New York
July 10, 2022

ROTH & ROTH, LLP



David A. Roth, Esq.
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212-425-1020
droth@rothandrothlaw.com

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ERIC ACHEAMPONG,

Plaintiff,

-against-

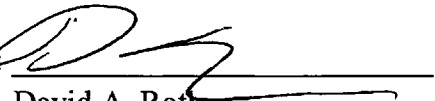
CITY OF NEW YORK, P.O. THOMAS MATERA and P.O.
ANTHONY D. MARTINEZ

Defendants.

-----X

SUMMONS AND COMPLAINT

The below signature attests to the following papers: *Summons and Complaint*

By: 

David A. Roth

ROTH & ROTH, LLP
Attorneys for Plaintiff
192 Lexington Avenue, Suite 802
New York, NY 10016
(212) 425-1020